

Performance Work Statement (PWS)

For

Ferry Transportation Services

1.0 General

1.1. Introduction and Background. Ie Shima Auxiliary Airfield is managed by the United States Marine Corps and is used as a training facility for training and vertical take-off and landing of aircraft. For the purpose of these trainings, operation and maintenance of facilities, etc., the transportations of the U.S. Government personnel and Government vehicles to and from Motobu Peninsula Port and Ie Shima Port, Okinawa, Japan would be needed via commercial Ferry Transportation Services.

1.2. Scope of Work and Objective. The Contractor shall provide all management, ferry operators, ferry crews, mechanics, tools, supplies, ferry servicing personnel, and other personnel necessary to provide COMMERCIAL FERRY TRANSPORTATION SERVICES including any required on-board security or supervision, as defined in this Performance Work Statement (PWS).

1.3. Ordering Period. The Ordering Period of this Contract is for five (5) years from 01 April 2026 to 31 March 2031 with five one-year option periods, through 31 March 2036.

2.0 Place of Performance. The Contractor shall provide Commercial Ferry Transportation Services in support of the U.S. Government personnel and Government vehicles to and from Motobu Peninsula Port and Ie Shima Port, Okinawa, Japan.

3.0 Technical Requirements (Description of Work / Tasks)

3.1. Authorization for the Use of Ferry Transportation Services: The Contractor is only authorized to provide ferry transportation services to U.S. Government personnel to include Marine Corps Military, U.S. Civilian, and Master Labor Contract (MLC)/Indirect Hire Agreement (IHA) personnel, and Government vehicles that have been approved by designated Government authorizing officials. (See Paragraph 7.2. Ferry Pass Authorization Form (Ferry Pass).)

3.1.1. The Contractor will be notified in writing of those Government personnel appointed as an Authorizing Official (AO) who are authorized to approve use of the services under this requirement.

3.1.2. The Contractor shall not accept “unauthorized date of travel”, “unauthorized numbers of Government personnel” and “unauthorized numbers and sizes of Government vehicles” exceeding authorized capacities on the Ferry Pass Authorization Form. Changes to the authorized Ferry Pass can only be made by the approving authority per established guidelines and orders. If for any reason the U.S. Government personnel request an increase in Passengers or Vehicles, the boarding shall be denied until procedures in Paragraph 3.1.3 are met. Any services provided without proper authorization shall be charged to the passengers at their own expense.

3.1.3. In the event U.S. Government personnel requests unauthorized ferry transport services, the Contractor shall instruct them to return the Ferry Pass Authorization Form to the authorizing official and obtain a new voucher. The Contractor shall not make any increases to the ferry pass. Once the U.S. Government personnel obtain the new Ferry Pass Authorization Form from the designated authorizing official, the Contractor may allow the boarding.

3.1.3.1. A list of designated authorizing officials will be provided to the Contractor at the time of Contract award. The list will be updated annually or in the event there is a change to the designated authorizing officials listed.

3.2. Ferry Fare:

3.2.1. All costs of operations shall be included in the fixed ferry ticket prices listed on the Contractor's price list. (See Attachment X – Ie Village Ferry Time Schedule and Price List.) The costs shall include administrative, capital, water source, and operational expenses (i.e. insurance, vessel maintenance, and other costs associated with the performance of this Contract).

3.2.2. The ferry ticket prices are subject to change based on economic conditions and negotiated with the Contracting Officer in accordance with DFARS 252.216-7003 – Economic Price Adjustment – Wage Rates or Material Prices Controlled by a Foreign Government. The Contractor shall provide an updated public price list, when the revision of ferry fare is determined by the Ie Village council as documentation for any request for price changes.

3.2.3. The original Ferry Pass Authorization Forms used by ferry passengers shall be maintained by the Ie Village. Copies of original forms shall be forwarded to the MCIPAC Regional Contracting Office with each monthly invoice within five (5) working days after the end of each month.

3.3. Schedule of Services: The Contractor shall continuously provide scheduled ferry services throughout the Basic Services Days during the Basic Service Hours in accordance with the Contractor's Ferry Time Schedule. (See Attachment X – Ie Village Ferry Time Schedule and Price List.)

3.3.1. The Contractor shall provide written notice of any changes made to the ferry time schedule within seven (7) business days, as determined by the Ie Village council.

3.4. Safety Operation:

3.4.1. The Contractor shall be fully responsible for assuring that the safety of passengers, operations personnel, and the vessels are maintained at the highest possible level throughout the duration of the Contract.

3.4.2. The Contractor shall comply with all national, and municipal safety laws, ordinances, rules, regulations and orders of any public authority bearing on the performance of this Scope of Work.

3.5. Accident Reporting:

3.5.1. The Contractor shall immediately notify the Contracting Officer's Representatives (COR) after receiving notice that an accident has taken place. All accident inquiries shall be communicated with the COR or Contracting Officer.

3.5.2. The Contractor shall submit a written Incident Report to the COR within 24 hours (weekends excluded) after the incident, including a detailed description of the incident and supplemental reports from all parties involved.

3.5.3. The U.S. Government reserves the right to review the determination of accident preventability for all accidents. The Contractor will be expected to take action on crew members involved in excessive incidents which endanger the U.S. Government passengers.

4.0 Delivery or Deliverables

4.1. (Contract Data Requirements List – CDRL).

CDRL Title	Applicable PWS Paragraphs
Copies of "Original Ferry Pass Authorization Forms"	PWS 3.2.3
Contractor's Ferry Time Schedule	PWS 3.3

4.2. Performance Requirement Summary (PRS).

The Contractor's performance requirements are summarized into performance objectives that relate directly to standards of performance required to meet mission essential needs. For the Performance Objective to be met, service delivery must be in substantial compliance with applicable performance standards. The Performance Threshold describes the minimum overall levels of service delivery required for acceptable quality control. Failure to meet these Performance Thresholds means that Contractor Quality Control is unacceptable.

Table 1: PERFORMANCE REQUIREMENTS SUMMARY (PRS)

The Performance Requirements Summary (PRS) in Table 1 outlines the Government's performance requirements for this Contract.

PERFORMANCE REQUIREMENT SUMMARY (PRS)

Task	Performance Objective	PWS Ref	Performance Standard	AQL	Surveillance Method	Incentive
Screening of Authorized Passengers and Vehicles	The Contractor only authorizes ferry transportation services to U.S. Government personnel to include Marine Corps Military, U.S. Civilian, and Master Labor Contract (MLC)/Indirect Hire Agreement (IHA) personnel, and Government vehicles that have been approved by designated Government authorizing officials.	3.1 3.1.2 and 3.1.3.	The Contractor shall verify all passengers and vehicles have been approved by an authorized individual. The Contractor shall not accept "unauthorized numbers of Government personnel" and "Unauthorized numbers and sizes of Government vehicles" exceeding authorized capacities on the Ferry Pass Authorization Form.	Accuracy: 100% (+/-2% variances) of all passengers and vehicles boarded.	Method: 100% Inspections for All Ferry Passes Frequency: Monthly Audit / Inspection.	The COR shall conduct periodic Assessment of the Contractor's performance

5.0 Applicable Documents / Governing References. In addition, requirements of regulations and policies applicable to this contract/order by virtue of clauses contained herein, the contractor shall, in the performance of this contract/order, also comply with all references applicable to the specific tasks of this Performance Work Statement, as listed below, including any amendments or subsequent issuance.

Reference	Location
Ie Village Ordinance, Title 12 – Public Sector, Chapter 3 – Vessel Operation Business	https://www.iejima.org/category/bunya/gyosei/gyousei/reiki/

The required ferry transportation services are the usage of a public transportation system, and their service is completely operated and managed by Ie Village in accordance with *Ie Village Ordinance, Title 12 – Public Sector, Chapter 3 – Vessel Operation Business and any other applicable Japanese laws and regulations.

6.0 Government Furnished Facilities, Equipment, Services and/or Information.

N/A

7.0 U.S. Government Responsibilities.

7.1. General Responsibilities: Government personnel utilizing services under this Contract may be held personally liable for unauthorized acts outside the scope of this Contract, and **are not authorized** to:

- a. Make commitments or changes that affect price, quality, quantity, delivery, or other terms and conditions of the Contract.
- b. Clarify, make or infer legal interpretations on the scope or intent of the Contract.
- c. Direct or impose any task or substitution or work not provided for in the purchase order.
- d. Negotiate or enter into any type of contractual agreement, change or modification.
- e. Give direction to Contractor personnel unless specifically provided for by the terms and conditions of the Contract.
- f. Discuss proposed specification changes without the consent of the Contracting Officer.

7.2. Ferry Pass Authorization Form (Ferry Pass):

7.2.1. Approvals will only be granted through use of the Ferry Pass Authorization Form titled, “**Authorization to Use Ferry Services To/From Ie Shima Form**”, which will be signed by the designated authorizing official. (See Attachment X – Sample Form.)

Step 1: Ensure the number of passengers and vehicles.

Step 2: Measure the size of the vehicles.

Step 3: Fill in the Ferry Pass Authorization Form in accordance with the attached Instructions and Ferry Price Listing.

(See Attachment X - Authorization to Use Ferry Services To/From Ie Shima Form (Ferry Pass), and Attachment X – Ie Village Time Schedule and Price List.)

Step 4: Obtain approval from the designated authorizing official. (Block 8 of the Ferry Pass Authorization Form must be completed with “original stamp”.)

Step 5: Make two (2) copies of completed form.

Step 6: Submit one (1) original form to the Port Ticketing Office and one (1) copy to the Port Ticketing Agent at the time of boarding.

Note: If passengers don't have the copies, the Port Ticketing Agent will not issue a ticket or make copies for the individual.

Step 7: One (1) copy is retained by Authorized Approving Unit (file copy).

7.2.2. The Government **shall not** utilize the Ferry Transportation Services with “unauthorized date of travel”, “unauthorized numbers of Government personnel” and “unauthorized numbers and sizes of Government vehicles” exceeding authorized capacities on the Ferry Pass.

The following are samples of unauthorized use of ferry passes, but are not limited to:

- 1) Exceeding authorized capacities on the Ferry Pass. (# of passengers / vehicles, / size of vehicles.)
Important: No pen changes are authorized for both the Contractor and the Government to increase the quantity of passenger or vehicle.

- 2) Duplicated use of the ferry pass. (In case of round trip, need to issue two (2) Ferry Passes.)
- 3) Missing Authorized signature on the ferry pass.
- 4) Use of old ferry pass. (Ferry Pass Authorization Form will be updated every year.)
- 5) Use of ferry passes by commercial vendors.
- 6) Use of ferry passes for unauthorized type of vehicles. (Oversized vehicles, un-operable vehicles, and vehicles loading hazardous materials, ammo, weapons, etc.)

7.2.3. **Boarding:**

- a. The Government passengers and vehicles shall be at the dock location no less than 30 minutes prior to boarding. The Government shall be responsible for delivering the vehicles to the port and staging point specified by the Contractor. (See Attachment X and Attachment X for Port Maps.)
- b. All equipment, machines, and gear, except for hand-carried luggage, shall be loaded on the vehicles.
- c. Delivery Point. All passengers and vehicles that require ferry transportation service to Ie Shima shall be staged at Motobu Peninsula Port at the date and time indicated on the ferry pass. Upon completion of the training/exercise, all will be staged at the Ie Shima port for the return trip to Motobu Peninsula Port.
- d. The Government shall be responsible for loading all vehicles aboard the ferry.
- e. The following vehicles/equipment/materials **cannot** be loaded/transported on the ferry:
 - Oversized vehicle (Length: over 16-meters / Height: over 3.7 meters / Weight: over 30-ton max vehicle weight with load.).
 - Un-operable vehicle:
(Un-operable vehicles towed with a regular tow truck or loaded on a trailer-truck are acceptable.)
 - Trailers towed behind a vehicle.
(If the transportation of a trailer is required, it must be loaded on a truck.)
(Regular trailer-truck/dump-truck is acceptable for boarding.)
 - Road Roller
 - Dangerous Goods/Hazardous materials

Note for Dangerous Goods/Hazardous Materials:

- 1) Fuel loaded on a large fuel truck (maximum: 20-tons/4792-gal per truck 18,144 liters per truck) is considered as “Dangerous Goods.” The transportation of Dangerous Goods is available every Friday, 10:00 (ordinary) or 13:30 (alternate) from Motobu Peninsula Port ONLY. The driver is required to submit a “Dangerous Goods Declaration Form” at the time of boarding. (See Attachment X - Dangerous Goods Declaration Form.)
- 2) Fuel trucks leaving Ie Shima must be empty of fuel and can leave anytime.
- 3) When ferry transportation of any other dangerous goods/hazardous materials is required, the ferry user is required to confirm the availability to the following offices in advance.

Ie Village, Kouei Kigyoka (Public Enterprise Division):	Tel: 098-049-2255 or,
Motobu Renraku Jimusyo (Motobu Information Center):	Tel: 098-047-3940

* Diesel Fuel Oil and Kerosene are NOT considered as “Dangerous Goods.” These can be transported anytime.

- Ordinance, ammunition, weapons, etc.
- Equipment/construction gear without being loaded onto a trailer-truck

7.2.4. Reservation/Cancellation of Vehicles:

The Government or ferry user shall call Ie Village Kouei Kigyoka (Public Enterprise Division) at 0980-49-2255 to make advanced reservations or Motobu Renraku Jimusyo (Motobu Information Center) at 0980-47-3940 for same day reservations. The Government or ferry user shall call to check availability and make reservations for the ferry transportation of vehicle(s). Failure to confirm reservations will result in government vehicles being placed on a space available waiting list. If cancellation is necessary, it shall be made at least one hour before scheduled departure.

8.0 Standards of Conduct for the Use of Commercial Ferry Services: While the Government is responsible for setting Standards of Conduct and enforcement of those standards for passengers riding Government contracted ferry, identification of violators of the Standards of Conduct is a mutual responsibility of the Government and the Contractor. Minimum standards which are expected of passengers are listed as follows:

Minimum standards which are expected of passengers:

1. Board and exit the ferry in an orderly, safe manner.
2. Present ferry pass when boarding the ferry and upon demand.
3. Talk with other passengers in a normal voice.
4. Keep all parts of the body inside the ferry deck, window, and fence.
5. Keep floor, aisles, steps and empty seats free from obstruction.
6. Remain fully and properly clothed.
7. Treat the Contractor's personnel and other commercial passengers with respect.
8. Promptly comply with the Contractor's personnel or monitor's instructions.
9. Treat the ferry and other related Contractor's equipment with care.
10. Failure to comply with Standards of Conduct stated above may result in refusal of service.

8.1.1. Standards of Conduct Violations: The Contractor shall report Standards of Conduct violations by completing and forwarding the Discipline Report to the COR at the earliest possible time after the incident.

8.1.1.1. In cases of serious passenger misconduct (such as vandalism, assault, battery, fighting, etc.), the Contractor shall immediately contact the COR. The Contractor shall also contact the Base Military Police (Marine Corps) at 098-893-7911 (Emergency) for further instructions.

9.0 Special Instructions and Administrative Information

9.1.1 Exemption from Japanese Taxes. Pursuant to the U.S. – Japan Status of Forces Agreement and the Joint Committee, the governments of the United States and Japan have agreed that the procurement in Japan of materials, supplies, equipment and services for official purposes may be except from certain Japanese taxes. When incorporated, paragraph c. of the clause FAR 52.229-6, “TAXES – FOREIGN FIXED PRICE CONTRACTS” and/or DFARS 225.229-7001 ‘TAX RELIEF’ stipulate that contract/order pricing shall not include the Consumption Tax. Submission of, and/or incorporation into the contract of, your offer, certifies that pricing does not contain any cost related to the Consumption Tax. Questions concerning this matter should be directed to your local Japanese Tax Office.

9.1.2. Quality Control and Quality Assurance. In accordance with FAR part 46, and the respective enumerated clauses incorporated in this contract/order, the contractor is reminded that the government may conduct Quality Assurance actions, inspect the Contractor's Quality Control Plan and records, and take remedial actions as necessary, at any time through the duration of this contract/order.

10.0 Definitions

Contractor. A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

Contracting Officer. A person with authority to enter, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR). An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

Defective Service. A service output that does not meet the standard of performance specified in the contract for that service.

Deliverable. Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

Quality Assurance. A planned and systematic pattern of all actions necessary to provide confidence that adequate technical requirements are established; products and services conform to established technical requirements; and satisfactory performance is achieved. For purposes of this contract, quality assurance refers to actions by the Government.

Quality Control. Those actions taken by a Contractor to control the production outputs to ensure that they conform to the contract requirements.

Performance Requirement Summary. A listing of the service outputs under the contract that are to be evaluated by the COR on a regular basis, the surveillance methods to be used for these outputs, and the standards of the listed outputs.

Standard: The point that divides acceptable and unacceptable performance of a task according to the Performance Requirement Summary. It is the number of defects or maximum percentage defective in the lot that is deemed acceptable.

End Performance Work Statement